OPEN SOCIETY
JUSTICE INITIATIVE

LITIGATION

German Criminal Investigation into Chemical Weapons Attacks in Syria

COURT
Domestic Courts

COUNTRY
Germany

STATUS
Active

First Criminal Complaint against Syrian Government Officials for Chemical Weapons Attacks

On 5 October 2020, the Open Society Justice Initiative, together with Syrian Archive and the Syrian Center for Media and Freedom of Expression, filed the first criminal complaint related to the use of chemical weapons in Syria with the Office of the German Federal Prosecutor. The complaint includes findings from the most detailed investigations to date into the sarin attacks on Ghouta in 2013 and in Khan Shaykhun in 2017. The dossier includes new evidence and investigative leads, and provides credible information that identifies a number of Syrian government officials and chains of command responsible for the attacks.

The complaint aims to advance the arrest and prosecution of Syrian officials responsible for the use of chemical weapons by supporting German prosecutorial authorities in conducting criminal investigations against these individuals and others who have not been identified. After independent investigations, the federal prosecutor could issue arrest warrants against suspects, the first step towards their prosecution.

Background

The chemical weapons attacks on Ghouta and on Khan Shaykhun are two of the Syrian conflict's deadliest chemical weapons attacks and are detailed further below. The use of chemical weapons in both attacks constitutes a war crime and a crime against humanity.

The Syrian government has used chemical weapons during the conflict as part of a pattern of deliberate and widespread attacks against civilians in areas held by opposition forces. Eastern and Western Ghouta and Khan Shaykhun were under control of the opposition at the time of the chemical attacks. The chemical used in both chemical attacks was sarin. The deadly nerve agent affected men, women and children, including first responders and medical personnel as they tried to rescue victims of the chemical attacks. Nearby medical facilities were also targeted around the time of the chemical attacks, which severely limited the emergency medical response.

Sarin and other chemicals have been developed and produced as part of the Syrian government's highly secretive chemical weapons program. At the heart of Syria's chemical weapons program lies the Scientific Studies and Research Center (SSRC), a Syrian government-affiliated entity responsible for the development and production of conventional and non-conventional weapons and delivery systems.

Following the chemical attacks on Eastern and Western Ghouta on August 21, 2013, the Organization for the Prohibition of Chemical Weapons (OPCW) adopted procedures for the destruction of Syria's chemical weapons program. The decision was endorsed by the United Nations Security Council in Resolution 2118 (2013). All chemical weapons materials declared by Syria were destroyed by mid-August 2014. Yet, later chemical attack, including on Khan Shaykhun in 4 April 2017, illustrate that the Syrian government continued its chemical weapons program past the destruction of its stockpiles.

Some states, including Germany, have universal jurisdictions laws, which provide national prosecutors and courts with the authority to investigate and prosecute international crimes committed on foreign territory by foreign nationals. For more, see the briefing paper produced by the Justice Initiative and TRIAL International: "Universal Jurisdiction Law and Practice in Germany".

August 21, 2013 Ghouta Chemical Weapons Attacks

In the early hours of August 21, 2013, chemical weapons attacks targeted two suburbs of Damascus. Several chemical rockets loaded with sarin struck Eastern Ghouta to the east of the capital and, hours later, Western Ghouta to the west of the capital. Heavy conventional bombardments followed the chemical strikes in Eastern Ghouta. The chemical attacks resulted in more than a thousand deaths and thousands of injuries.

The chain of command responsible for the chemical attacks on Eastern Ghouta uncovered by the Justice Initiative's investigation includes senior officers within the SSRC Branch 450, which supports the planning and execution of Syria's chemical weapons attack; the Republican Guard; the Syrian Missile and Artillery Directorate; the General Command of the Army and Armed Forces; the 4th Armored Division; the 155th Missile Brigade; the 104th and 105th Brigades of the Presidential Guard. It also includes Maher Al-Assad, the brother of President Bashar al-Assad, who gave personal orders for the attacks, and President al-Assad, who held the highest responsibility in authorizing the attack.

April 4, 2017 Khan Shaykhun Chemical Weapons Attack

On the morning of April 4, 2017, a Sukhoi-22 aircraft took off from Shayrat Airbase and dropped a sarin bomb on the town of Khan Shaykhun in the Idlib Governorate. The sarin attack resulted in upwards of a hundred deaths and hundreds of injuries.

The Joint Investigative Mechanism of the United Nations and the Organization for the Prohibition of Chemical Weapons (OPCW) investigated the attack and concluded that it was "confident that the Syrian Arab Republic is responsible for the release of sarin at Khan Shaykhun on 4 April 2017." The chain of command responsible for the chemical attack on Khan Shaykhun includes the pilot of the aircraft, commanders of the 22nd Air Division, the commander of the Syrian Arab Air Force and Syrian Arab Air Defense Forces, and the Chief of Staff of the Army and Armed Forces, with President Bashar al-Assad holding the highest responsibility in authorizing the attack.

Open Society Justice Initiative Involvement

In 2017, the Justice Initiative partnered with Syrian Archive, the Syrian Center for Media and Freedom of Expression to investigate these chemical weapons attacks and to identify the perpetrators and chains of command responsible. ArcticWind Solutions, C4ADS, and the Human Rights Center Investigations Lab at UC Berkeley School of Law also supported the investigations.

The Justice Initiative and its partners interviewed over 90 witnesses to build its dossier of evidence. This includes numerous former government insiders, who are willing to provide testimony should prosecutors open a legal case. Additionally, the Justice Initiative represents 17 survivors of the chemical weapons attacks on Khan Shaykhun and Eastern and Western Ghouta who would also be able to provide testimony.

All Documents

OCTOBER 05, 2020

Public summary of evidence: Ghouta

Download the 13-page document.

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OCTOBER 05, 2020

Public summary of evidence: Khan Shaykhun

Download the 10-page document.

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RELATED CASES

LITIGATION

Swedish Criminal Investigation of Chemical Weapons Attacks In Syria

On April 19, 2021, the Open Society Justice Initiative joined survivors of chemical weapons attacks in Syria, the Syrian Center for Media and Freedom of Expression (SCM), Syrian Archive, and Civil Rights Defenders in filing a criminal complaint with Swedish War Crimes Commission within the Swedish Police Authority.

LITIGATION

French Criminal Investigation of Chemical Weapons Attacks In Syria

On March 1, 2021, the Justice Initiative joined Syrian survivors of chemical weapons attacks, the Syrian Center for Media and Freedom of Expression (SCM), and Syrian Archive in seeking a French criminal investigation for the August 2013 chemical weapons attacks on the city of Douma and on Eastern Ghouta.

RELATED WORK

PRESS RELEASE

Justice Initiative Joins Syrian Groups in Filing First Criminal Complaint on Behalf of Sarin Attack Victims

The Justice Initiative, the Syrian Center for Media and Freedom of Expression, and Syrian Archive have filed a criminal complaint on behalf of chemical weapons attack victims to the Office of the German Federal Public Prosecutor.

OCTOBER 06, 2020

PRESS RELEASE

Bashar al-Assad Can Be Prosecuted in France, but the Court Missed an Opportunity to Make History

The decision stands in stark contrast to the post-World War II rejection of impunity for heads of state, and it undermines decades of progress in holding leaders accountable for mass atrocities.

JULY 28, 2025

PRESS RELEASE

Statement by Civil Society Organizations on the Upcoming French Cour de Cassation Hearing Regarding Immunities for State Officials

France's Court of Cassation will hold a landmark hearing to review the legality of the arrest warrant against Bashar al-Assad for deadly chemical attacks in Syria. This is a pivotal moment in the fight against impunity.

JULY 03, 2025

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